

CCRB CASE CLOSING FORM

Investigator assigned: Zafian		Team: 4	CCRB#: 9601986	FADO: D
Date of incident: 5/4/96	Time of incident: 13:51 hrs.	Location of incident: West 125 th St and Amsterdam Ave.	Pct. of occurrence: 026	Date SOL expires: 11/4/97
Date reported: 5/4/96	Time reported: 18:04 hrs.	To whom/where/how reported: Complaint filed at 26 Precinct		
Complainant: § 87(2)(b)		Home address: § 87(2)(b)		
Victim(s):				
Witness(es):				
Subject officer(s) (include rank):		Shield:	Fax:	Command:
Police Officer Ronald Luparello		27134	916088	026 Pct.
Witness officer(s) (include rank):				
Police Officer Eddie Perez		8336	916418	026 Pct.
Allegation(s) by letter:			Recommendation(s):	
A. Police Officer Luparello was discourteous to Mr. § 87(2)(b) by asking him 'how many times he's been in jail' and using a discourteous tone and manner when addressing Mr. § 87(2)(b)			unsubstantiate	

Notes

1) Ms. § 87(2)(b) was named as a witness in this case on the Civilian Complaint Report filled out by Mr. § 87(2)(b) at the precinct (See report, enc. #1). § 87(2)(b) was never contacted by the CCRB until the 10th of June, 1997 (See letter, enc. #21). After multiple efforts to learn Ms. § 87(2)(b) telephone number from Mr. § 87(2)(b) (See IAs, enc. #19 & 20) Ms. § 87(2)(b) was telephoned and contacted on the 27th of June (See IA, enc. #4). At this time, Ms. § 87(2)(b) stated that she would not be able to come to the CCRB for an interview because she has a young child. For this reason an informal telephone interview was conducted over the telephone in Spanish (See IA, enc. #4). Thus, Ms. § 87(2)(b) was never formally interviewed by the CCRB.

2) Police Officer Luparello revealed in his interview that an officer named Police Officer 'Eddie' Perez was present during the incident. Based upon the information that there was a Police Officer Edward Perez, Investigator Cherry scheduled PO Eduardo Perez from Brooklyn

North Narcotics for an interview (See interview summary, enc. #7). This PO Eduardo Perez has absolutely nothing to do with the incident. This PO Perez had never worked for the 26 Precinct, was not in a marked RMP on the day of the incident, was not at all involved. This officer was interviewed because he has the same name as Police Officer Eddie Perez, of the 26th Precinct, who was in fact a witness in this case. § 87(2)(g)

3) Police Officer Luparello wrote Mr. § 87(2)(b) two summonses. Neither of these summonses are enclosed in the case file. Although these two tickets are the only police documents related to the incident, § 87(2)(g)

Although these summonses were once requested (See Request, enc. #13), this request was never answered by the precinct; therefore, the summonses were not obtained. § 87(2)(g)

Summary

On the 4th of May, 1996, Mr. § 87(2)(b) was driving his car down 125th Street by Amsterdam Avenue with Ms. § 87(2)(b). Police Officer Ronald Luparello was working a foot post at this location on a traffic assignment. When approaching a red light, Mr. § 87(2)(b) stopped his car halfway across the crosswalk. After seeing him blocking pedestrian traffic, PO Luparello pulled him over. Police Officer Luparello gave Mr. § 87(2)(b) a summons § 87(2)(b)

Analysis

Allegation A, that Police Officer Luparello was discourteous, should be closed as 'unsubstantiated'. Mr. § 87(2)(b) said that this took place. Police Officer Luparello denies that he was discourteous. § 87(2)(g)

The one witness officer interviewed, PO Perez, stated in his interview that he did not hear PO Luparello say anything discourteous.

Ms. § 87(2)(b), Mr. § 87(2)(b) female companion, stated to an investigator during a telephone conversation that PO Luparello was rude (See IA, enc. #7). Ms. § 87(2)(b) explained that PO Luparello asked Mr. § 87(2)(b) how many times he had been to jail before and used a rude tone. § 87(2)(g)

§ 87(2)(g)
It should be closed as 'unsubstantiated'.

Signature: Armando Fajardo

Date: July 2, 1987

Signature: [Signature]

Date: 7/4/87

Reviewed by: _____

Date: _____

Reviewed by: _____

Date: _____